

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.: 508225/2019

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FRANCES E. BABB,

Plaintiff,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK, POLICE OFFICER ALAN
CHAU, POLICE OFFICER YANNIFER SANDY, POLICE
OFFICER JANE DOE,

Defendants.
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Plaintiff, FRANCES BABB, by her attorney, MASAI I. LORD Esq., complaining of the
Defendants, respectfully alleges the following:

PRELIMINARY STATEMENT

1. Plaintiff FRANCES E. BABB brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and all attendant New York state common law and statutes, for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

2. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK was a Municipal corporation duly existing under and by virtue of the laws of the State of New York and doing business in the State of New York.

3. That at all times hereinafter mentioned, the defendants ALAN CHAU, YANNIFER SANDY, and JANE DOE were employees of the New York City Police Department, acting in their capacity as a police officers, and under color of law.

4. That all acts and incidents complained of herein occurred in Kings County, City, and State of New York.

5. That within 90 days after the state law claim of Malicious Prosecution accrued, plaintiff served a Notice of Claim, in writing, sworn by the claimant, containing the name and post office address of the plaintiff and plaintiff's attorney, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the defendants by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.

6. That plaintiff appeared for a hearing pursuant to §50-H of the General Municipal Law on or about August 31, 2018.

7. That the defendants have not adjusted, settled or paid the same.

8. That this claim has been commenced and this action has been started within one year and ninety days after the accrual of the state law violation upon which the New York state law claims are based.

9. That all conditions and requirements precedent to the commencement of this action have been complied with.

10. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants owed the plaintiff a non-delegable duty of care.

11. Pursuant to CPLR Section 1602(7), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants acted with reckless disregard of the safety of others.

12. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants are vicariously liable for the negligent acts and omissions of others who caused or contributed to the plaintiff's damages.

13. That by reason of the foregoing, this plaintiff has been damaged in an amount which

exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

STATEMENT OF FACTS

14. On the very early morning of January 14, 2018 Plaintiff was asleep in her apartment when defendants ALAN CHAU (“CHAU”), YANNIFER SANDY, and JANE DOE entered her residence without permission. Ms. Babb was woken up when a relative informed that police had entered the apartment.

15. When Ms. Babb came downstairs, she saw her grandson being arrested and she was told it was because he was being “disrespectful” to the Police.

16. Then, Ms. Babb was ordered to be arrested by DEFENDANT CHAU after he claimed that he found marijuana on the floor of the residence.

17. Ms. Babb was escorted upstairs to her bedroom by DEFENDANT SANDY and DEFENDANT JANE DOE in order to change clothes for her arrest. After she changed clothes, DEFENDANT SANDY, violently grabbed her wrist and pulled her arm in an attempt to arrest her.

18. As a result of the excessive force that was used, Ms. Babb had to get surgery on her shoulder in December of 2018. She has suffered, and is currently suffering, substantial pain.

19. Thereafter, claimant was charged under Docket # CR-002790-18KN, for, *inter alia*, ABC 064-B, Unlicensed Bottle Club, a class A Misdemeanor.

20. Plaintiff was incarcerated for approximately 20 hours before being arraigned she was released on her own recognizance.

21. None of the aforementioned acts were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimant were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

22. These charges against plaintiff were based entirely on the false allegations and fabrications by DEFENDANTS CHAU, SANDY, and JANE DOE.

23. All criminal charges against plaintiff relating to this arrest were dismissed on September 04, 2018 pursuant to Adjournment in Contemplation of Dismissal received on March 05, 2018.

24. Plaintiff was acting lawfully when he was stopped, arrested and imprisoned by agents and/or employees of the City of New York, including, but not limited to, upon information and belief, agents employed by the New York City Police Department.

25. Plaintiff was then maliciously prosecuted by and at the direction of the said individuals.

26. None of the aforementioned acts are or were protected by legal privilege, nor were such acts legally justified.

27. Said occurrence and the injuries and damages sustained by claimants were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

28. As a result of the defendants' conduct, plaintiff has been caused to suffer, *inter alia*, severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

**FIRST CAUSE OF ACTION:
FALSE IMPRISONMENT UNDER NEW YORK STATE LAW**

31. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

32. That on January 14, 2018, and at all times hereinafter mentioned and upon information and belief, DEFENDANTS, without justification and without probable cause, imprisoned the Plaintiff.

33. That the DEFENDANTS' acting under the color of the law, intentionally confined the Plaintiff against his will and said confinement was not privileged.

34. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

35. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**SECOND CAUSE OF ACTION:
FALSE ARREST UNDER 42 U.S.C 1983**

36. Plaintiff repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

37. Plaintiff was arrested in the absence of probable cause, at the direction of, or under practices, policies or customs promulgated by the NEW YORK POLICE DEPARTMENT and CITY OF NEW YORK.

38. As a result of the aforesaid conduct by DEFENDANTS, Plaintiff was subjected to illegal, improper and false arrest by the DEFENDANTS and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

39. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

40. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**THIRD CAUSE OF ACTION:
NEGLIGENT HIRING AND RETENTION**

41. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

42. DEFENDANT New York City are liable to Plaintiff because of its intentional, deliberately indifferent, careless, reckless, and/or negligent failure to adequately hire, train, supervise, retain and discipline its agents and/or employees employed by the New York City Police Department with regard to the duties described above.

54. The misconduct by DEFENDANTS CHAU and SANDY and JANE DOE described above and below, in particular evidences the failure to adequately hire, train, supervise, retain and discipline the Department's officers.

55. Consequently, DEFENDANT City of New York are liable to Plaintiff for damages.

**FOURTH CAUSE OF ACTION:
NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

56. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

57. The DEFENDANT, THE CITY OF NEW YORK, including but not limited to DEFENDANTS POLICE OFFICER ALAN CHAU and SANDY and JANE DOE, acted

intentionally, recklessly, and with utter disregard to the consequences of their actions and caused sever emotional distress to Plaintiff through their actions.

58. Such actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulting in severe emotional distress to Plaintiff.

59. That as a result of said intentional and negligent acts, the Plaintiff received serious injuries in diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish, and psychological trauma and was otherwise injured.

60. By reason of the foregoing, DEFENDANTS are liable to Plaintiff for damages.

**FIFTH CAUSE OF ACTION:
VIOLATIONS OF THE RIGHT TO A FAIR PROSECUTION AND DUE PROCESS OF
LAW UNDER 42 U.S.C 1983**

61. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

62. DEFENDANTS failed to timely disclose material favorable to the defense in contravention of Brady v. Maryland, 373 U.S. 83 (1963), Giglio v. United States, 405 U.S. 150 (1972), and their progeny.

63. The Individual DEFENDANTS acting individually and in concert and conspiracy, deliberately, and recklessly.

64. At all times DEFENDANTS were acting within their scope of their employment with the DEFENDANT, THE CITY OF NEW YORK, at the aforesaid location.

65. That this information caused Plaintiff to be denied his liberty and right to a fair prosecution in violation of fourth, fifth, sixth, and fourteenth amendments of the United States Constitution.

**SIXTH CAUSE OF ACTION:
ASSAULT AND BATTERY UNDER NEW YORK STATE LAW**

66. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

67. That, on January 14, 2018, DEFENDANTS, who were acting within the scope of their employment with the DEFENDANT, THE CITY OF NEW YORK, at the aforesaid location.

68. That, on January 14, 2018 DEFENDANTS committed an assault and battery knowingly, intentionally, and willfully.

69. That, on January 14, 2018, DEFENDANTS who committed the aforementioned assault and battery upon the Plaintiff Frances Babb were acting within the scope of their employment with the DEFENDANT, THE CITY OF NEW YORK.

70. That, on January 14, 2018, the assault and battery on the Plaintiff was without probable cause and was not the result of an unlawful arrest.

71. By reason of the foregoing, DEFENDANTS are liable to Plaintiff for damages.

**SEVENTH CAUSE OF ACTION:
FAILURE TO INTERVENE UNDER 42 U.S.C. 1983**

72. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

73. Those DEFENDANTS that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

74. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

**EIGHTH CAUSE OF ACTION:
VIOLATIONS OF THE NEW YORK STATE CONSTITUTION**

75. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

76. By virtue of the aforementioned acts, the Individual DEFENDANTS are liable to Plaintiff for violating his right to due process under Article I, § 6 of the New York State Constitution, and his right to be free of unreasonable and unlawful searches and seizures under Article I, § 12 of the New York State Constitution.

77. DEFENDANT THE CITY OF NEW YORK and the New York City Police Department are liable for these violations of the New York State Constitution under the principle of respondeat superior.

**NINTH CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER FEDERAL LAW**

78. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

79. In detaining plaintiff, DEFENDANT YANDY used force.

80. The force used was unreasonable and excessive.

81. As a result of the unreasonable and excessive force, plaintiff suffered injuries requiring surgery, physical rehabilitation, and substantial pain.

82. Defendants' use of force was a substantial factor in causing the harm to plaintiff.

83. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, and loss of freedom.

DAMAGES

61. As a direct and proximate cause of DEFENDANTS' actions and inactions, Plaintiff was deprived of his civil rights under the Fourth, Fifth, Sixth, and Fourteen Amendments of the United States Constitution and under the laws of New York.

62. This action seeks damages from on or prior to January 14, 2018 through the present.

63. The unlawful, intentional, willful, deliberately indifferent, reckless, negligent, wanton and/or bad-faith acts and omissions of DEFENDANTS caused Plaintiff to be forced to be, deprived of liberty, deprived of relevant and exculpatory evidence, and subjected to illegal searches.

64. Such acts and omissions of DEFENDANTS caused the following injuries and damages to Plaintiff which were foreseeable to DEFENDANTS at the time of the acts and omissions and which continue to date and will continue into the future: susceptibility to physical assaults and batteries and physical assault and batteries, physical injuries, pain and suffering, mental anguish, emotional distress, psychological damage, loss of liberty, loss of relationships, loss of family, loss of companionship, loss of consortium, loss of guidance, loss of emotional and psychological development, humiliation, embarrassment, and degradation.

65. Such acts and omissions of DEFENDANTS entitle Plaintiff to compensatory and punitive damages.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
May 23, 2019

Yours, etc.

Lord & Schewel PLLC



Masai I. Lord
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ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD & SCHEWEL PLLC, attorneys of record for plaintiff FRANCES E. BABB. I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff are not presently in the county wherein I maintain my offices.

DATED: New York, New York
May 23, 2019



MASAI I. LORD
Counsel for Plaintiff